

APPENDIX A-2: SCOTUS Shadow Docket Jurisdiction Fraud Schematic

UNITED STATES DISTRICT COURT

DISTRICT OF MINNESOTA

JOSEPH D. KIRCHNER, *Plaintiff,*

v. Civil Action No. 0:26-cv-00726-PJS-ECW

KEITH ELLISON, in his official capacity as Attorney General of the State of Minnesota, *Defendant.*

THE COORDINATED JURISDICTIONAL FRAUD SCHEMATIC
(134 Applications, 1952–2026)
*** DOCUMENTED VIA OFFICIAL COURT DOCKET RECORDS ***

THE STATUTORY REALITY (What Law Actually Provides)

§ 2101(e): File cert petition "to review a case" → REVIEW ONLY, NO STAYS
§ 2101(f): Stay "final judgment or decree" → STAYS ONLY FINALS, NOT PIs
§ 1651: All Writs "in aid of...jurisdictions" → NO NEW JURISDICTION
★ THE GAP: No statute authorizes staying preliminary injunctions ★

THE RULE REQUIREMENTS (What Must Be Done)

Rule 14(e)(iv): "SHALL contain...the statutory provision believed to confer on this Court jurisdiction"
Rule 14.5: Clerk "will return" non-compliant petitions
Rule 20.2: Extraordinary writs "shall follow...Rule 14"

GOVERNMENT FILES APPLICATION
(Example: Nov 18, 2022)
Biden v. Nebraska

MECHANISM 1:

MECHANISM 5:

Application Without
Statutory Citation

- x No § 2101(f)
- x No § 2101(e)
- x No jurisdictional statement
- ✓ Only "Rule 23" + "All Writs Act"

Caption: "Application to Vacate Injunction entered by...Circuit"

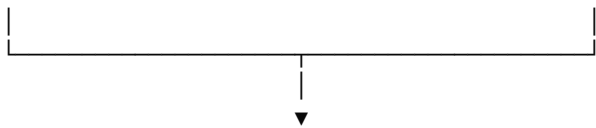
Creates AMBIGUITY:
Could be § 2101(f) stay
OR § 2101(e) cert

Order Characterization
Avoidance

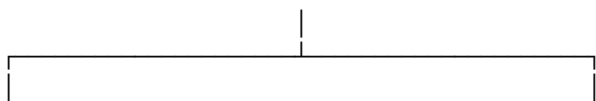
- x Never says "preliminary injunction"
- x Uses generic "injunction"
- x Avoids "final" vs. "interlocutory"

By 2025: explicit "INTERLOCUTORY" but still no § 2101(f)

See: Blanche v. Perlmutter (25A478)



COURT RECEIVES FILING
(Same Day Processing)



MECHANISM 4:
Rule 14 Systematic
Violation Accepted

Court SHOULD:

- x Return per Rule 14.5 with deficiency letter

Court ACTUALLY DOES:

- ✓ Accepts violation
- ✓ No deficiency letter
- ✓ Creates privilege for government
- ✓ Zero rejections across 54 SG apps

MECHANISM 6: ★ SMOKING GUN ★
Dual Docket Creation with
DOCUMENTED Link Notation

Court CREATES TWO DOCKETS from
SINGLE filing:

DOCKET 22A444
Type: APPLICATION
Caption: "Application (22A444) to vacate injunction"
Character: Emergency stay relief

ADMINISTRATIVE
LINKAGE DOCUMENTED

DOCKET 22-506
Type: PETITION
Caption: "Petition for writ of certiorari before judgment"
*** NOTATION: ***
"Linked with: 22A444"

"Linked with" notation DOCUMENTS
coordination infrastructure

*** THE CONVERSION MECHANISM ***
(Central Fraud Component)

MECHANISM 2:
Documented Conversion via "Treated As"

Court Order States:

"The APPLICATION to vacate injunction
is also TREATED AS a PETITION for writ
of certiorari before judgment (22-506),
and the PETITION is GRANTED"

★ "TREATED AS" = Explicit Conversion ★

What This Conversion Accomplishes:

- x Papers over § 2101(f) inapplicability
- ✓ Points to § 2101(e) instead
- x But § 2101(e) = REVIEW only
- x § 2101(e) has NO stay authority
- ✓ Court grants STAY anyway
- x Never identifies stay authority

THE SHELL GAME:

- Convert to review statute (§ 2101(e))
- Grant review legitimately
- Grant stay simultaneously
- Never explain stay authority

Result: Stay granted with
NO statutory authority

MECHANISM 3:
All Writs Act Misuse

Claims: § 1651 provides
authority

But: § 1651 requires
existing jurisdiction
"to aid"

Problem: No jurisdiction
exists at T₁

- Cert not granted yet
- § 1254(1) doesn't
apply until cert

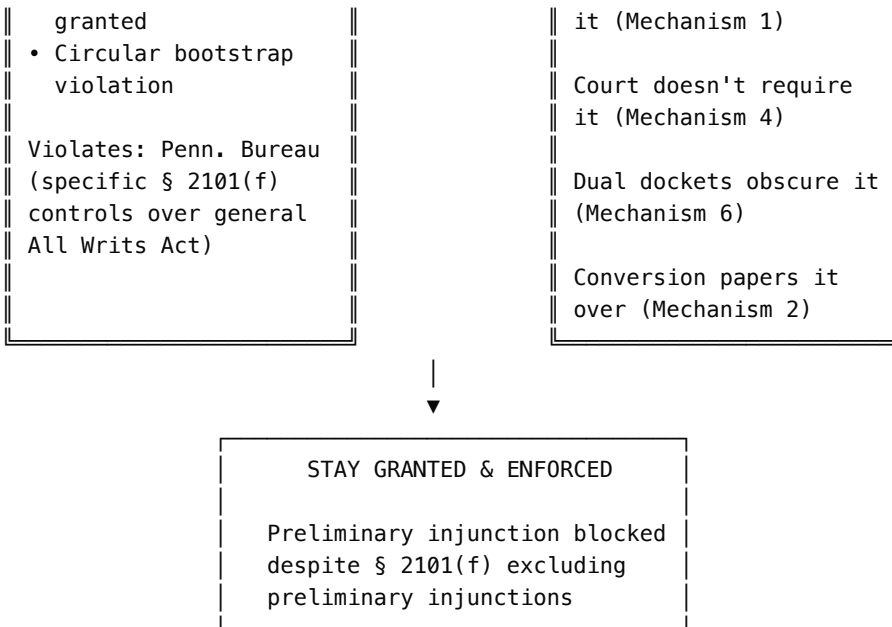
THE AVOIDANCE
ACCOMPLISHED:

Through dual-docket
conversion system,
no one ever states:

"This Court has juris-
diction under 28 U.S.C.
§ [X] to stay this
preliminary injunction"

★ Critical gap ★

Government doesn't say



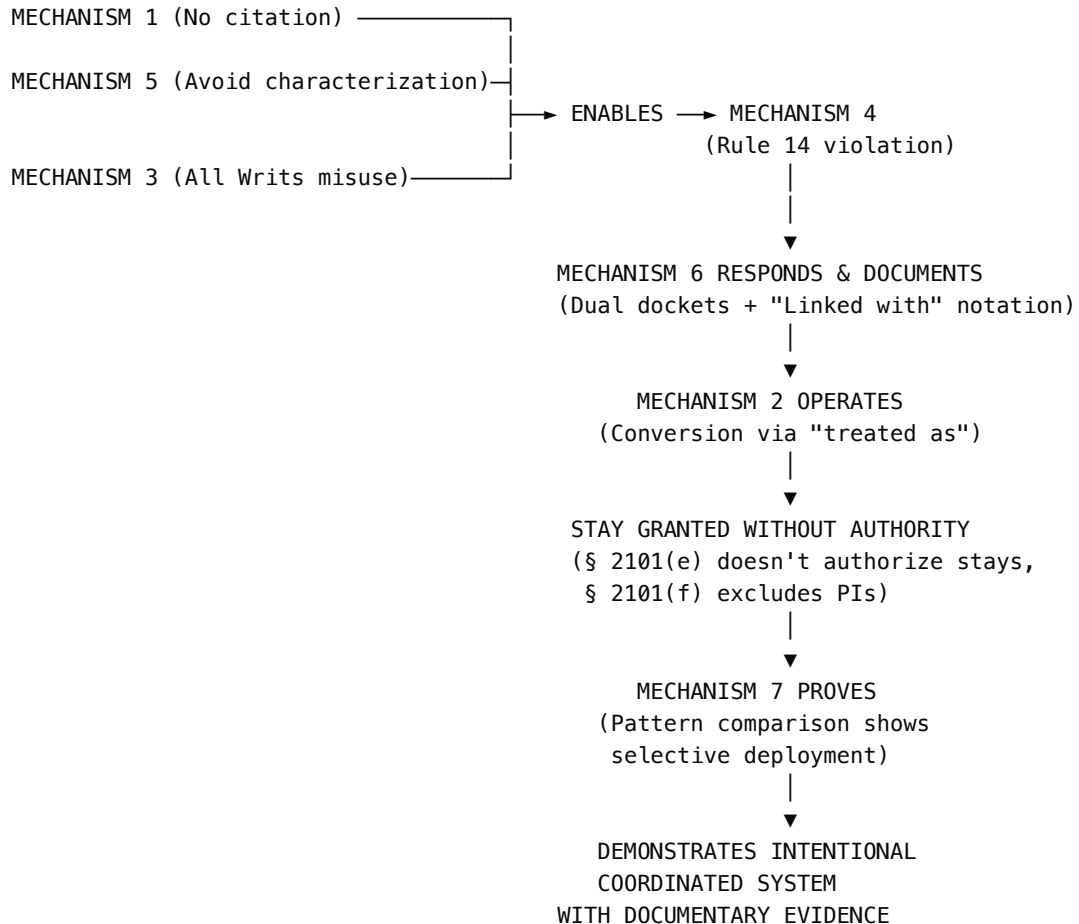
MECHANISM 7: SELECTIVE ENFORCEMENT
(Proves Intentional System via Comparison)

WHEN AUTHORITY EXISTS:	WHEN AUTHORITY DOESN'T EXIST:
MANDATE STAYS (Final judgments – § 2101(f) applies) ✓ Cite § 2101(f) UPFRONT ✓ SINGLE docket ✓ NO linkage notation ✓ Clear order identification ✓ No conversion needed ✓ Rule 14 complied with ✓ Transparent authority	PRELIMINARY INJUNCTION STAYS (Interlocutory orders – NOT § 2101(f)) ✗ Never cite § 2101(f) ✗ DUAL dockets created ✓ "Linked with" notation documented ✗ Ambiguous characterization ✓ Conversion via "treated as" ✗ Rule 14 violations accepted ✗ Obscured authority
CERT BEFORE JUDGMENT (Review – § 2101(e) applies) Example: Learning Resources (June 2025) ✓ "Court has jurisdiction under 28 U.S.C. §§ 1254(1) and 2101(e)" ✓ Perfect Rule 14 compliance ✓ SINGLE docket	PRELIMINARY INJUNCTION STAYS (Stay – needs § 2101(f) which doesn't apply) Example: Biden v. Nebraska (Nov 2022) ✗ No jurisdictional statement ✗ Only "Rule 23 and All Writs" ✗ Scattered insufficient authorities ✗ Complete Rule 14 violation ✗ DUAL dockets with linkage

*** SAME COURT RULES: Rule 14 applies to all ***
*** OPPOSITE PROCEDURES: Single docket when statute applies,
dual dockets when it doesn't ***

PROVES: Dual-docket system is SELECTIVELY DEPLOYED when statutory authority
is LACKING, not routine administrative practice

THE CASCADE EFFECT: HOW MECHANISMS COMPOUND



THE NET RESULT

Through 7 Coordinated Mechanisms:

- | |
|---|
| <ol style="list-style-type: none">1. § 2101(f)'s "final judgment" limit never analyzed2. § 2101(e)'s lack of stay authority never acknowledged3. § 1651's jurisdiction requirement never satisfied4. Preliminary injunctions stayed without authority5. 134 applications spanning 74 years, zero accountability6. Coordination DOCUMENTED via "Linked with" notation7. Separation of powers violated through procedural fraud |
|---|

COURT EXERCISES POWER CONGRESS NEVER GRANTED

THE STATISTICAL PROOF (134 Cases, 1952–2026)

SOLICITOR GENERAL (54 Applications, 1971–2026)

Rule 14 Jurisdiction Section: 1/54 = 1.9%
§ 2101(f) Cited: 1/54 = 1.9%
Grant Rate: 28/38 = 73.7%

PRIVATE PARTIES (65 Applications)

Rule 14 Jurisdiction Section: 31/65 = 47.7%
§ 2101(f) Cited: 16/65 = 24.6%
Grant Rate: 23/57 = 40.4%

THE INVERSE CORRELATION:

- 1.9% compliance → 73.7% success (SG)
- 47.7% compliance → 40.4% success (Private)

Rules enforced against citizens are waived for government.

ERA-BASED DISPARITY ANALYSIS

ERA	SG GRANT RATE	PRIVATE RATE	DISPARITY
Historical	3/6 (50.0%)	6/12 (50.0%)	+0.0 pts
Early Modern	5/6 (83.3%)	6/7 (85.7%)	-2.4 pts
COVID/2020	2/2 (100.0%)	4/9 (44.4%)	+55.6 pts
Post-Barrett	3/7 (42.9%)	4/7 (57.1%)	-14.3 pts
★ TRUMP II ★	15/17 (88.2%)	3/17 (17.6%)	★+70.6 pts★

DISPARITY TRANSFORMATION:

Pre-Trump II (1952–2024): SG 61.9% vs Private 57.1% = +4.8 pts
Trump II (2025–present): SG 88.2% vs Private 17.6% = +70.6 pts

Disparity Increase: +65.8 pts

THE SINGLE § 2101(f) CITATION

Across 54 Solicitor General emergency applications spanning 1971–2026, only ONE ever cited 28 U.S.C. § 2101(f).

Trump v. IRAP (Travel Ban 1), 16A1190, June 1, 2017:

"Pursuant to this Court's Rule 23 and 28 U.S.C. 1651 and 2101(f),
the Acting Solicitor General...respectfully applies for a stay..."

★ This was the only time. The template then degraded. ★

NOTE: This order was VACATED on October 10, 2017, yet continues to
be cited as authority eight years later.

WHAT THE DIAGRAM PROVES (Summary)

1. DOCUMENTED INFRASTRUCTURE: "Linked with: 22A444" proves dual-docket conversion system exists and is tracked in official Court records
 2. SELECTIVE DEPLOYMENT: Comparison proves system used when authority lacking (PI stays), avoided when authority exists (mandate stays)
 3. CONSCIOUS COORDINATION: "Treated as" language proves Court knows these are different procedures requiring explicit transformation
 4. SYSTEMATIC PATTERN: 134 applications over 74 years with +70.6 pt Trump II disparity proves non-random, coordinated deployment
 5. INVERSE CORRELATION: 1.9% compliance → 73.7% success; 47.7% compliance → 40.4% success. Rules are selectively enforced based on applicant identity.
 6. SINGLE CITATION: Only one SG application ever cited § 2101(f) – and that order was subsequently vacated, yet continues to be cited as authority.
 7. ENTERPRISE ELEMENT: Coordination between executive (SG files ambiguously) and judicial (Court creates dual dockets) establishes institutional pattern
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CERTIFICATION

I, Joseph D. Kirchner, certify that this analysis accurately represents the research methodology and findings documented herein.

Dated: March 2026

JOSEPH D. KIRCHNER Plaintiff, Pro Se 4440 Parklawn Avenue #203 Edina, MN 55435 Tel: (612) 552-2122 Email: legal@lawsofexistence.com

Supporting Memorandum A See also ECF No. 13-81, Kirchner v. Johnson, No. 1:25-cv-02735-ACR (D.D.C.)